

NATIONAL ASSEMBLY
.....

SOCIALIST REPUBLIC OF VIETNAM
Independence - Freedom - Happiness
.....

Law No.: 134/2025/QH15

Hanoi, December 10, 2025

LAW

ARTIFICIAL INTELLIGENCE

Based on the Constitution of the Socialist Republic of Vietnam, as amended and supplemented by Resolution No. 203/2025/QH15;

The National Assembly enacted the Law on Artificial Intelligence.

Chapter I

GENERAL REGULATIONS

Article 1. Scope of application

1. This Law regulates the research, development, provision, deployment, and use of artificial intelligence systems (hereinafter referred to as artificial intelligence activities); the rights and obligations of relevant organizations and individuals; and state management of artificial intelligence activities in Vietnam.
2. Artificial intelligence activities that serve only the purposes of national defense, security, and cryptography are not within the scope of this Law.

Article 2. Scope of Application

This law applies to Vietnamese agencies, organizations, and individuals, as well as foreign organizations and individuals participating in artificial intelligence activities in Vietnam.

Article 3. Definitions

In this Law, the following terms are understood as follows:

1. *Artificial intelligence* is the electronic implementation of human intellectual capabilities, including learning, reasoning, perception, judgment, and understanding natural language.
2. *An artificial intelligence system* is a machine-based system designed to perform artificial intelligence capabilities with varying degrees of autonomy, capable of self-adaptation after deployment; based on clearly defined or implicitly formed objectives, the system infers from input data to produce outputs such as predictions, content, recommendations, or decisions that can influence the physical or digital environment.

3. A *developer* is an organization or individual that designs, builds, trains, tests, or refines all or part of an artificial intelligence model, algorithm, or system and has direct control over the technical methods, training data, or model parameters.

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4. A *supplier* is an organization or individual that brings artificial intelligence systems to the market or puts them into use. to use under their own name, brand, or trademark, regardless of whether the system was developed by them or by a third party.

5. The *implementing party* is an organization or individual using artificial intelligence systems under its control in professional, commercial, or service-providing activities; excluding cases of use for personal or non-commercial purposes.

6. *Users* are organizations or individuals who directly interact with the artificial intelligence system or use the output of that system.

7. *Affected parties* are organizations or individuals whose legal rights, interests, lives, health, property, reputation, or access to services are directly or indirectly impacted by the deployment or output of artificial intelligence systems.

8. A *serious incident* is an event occurring in the operation of an artificial intelligence system that causes or is likely to cause significant damage to life, health, human rights, property, cybersecurity, public order, the environment, or disrupts the operation of information systems critical to national security.

Article 4. Fundamental principles in artificial intelligence operations

1. Putting people at the center; ensuring human rights, privacy rights, national interests, public interests, and national security; adhering to the Constitution and laws.

2. Artificial intelligence serves humanity; it does not replace human authority and responsibility. Ensuring human control and intervention over all decisions and behaviors of the artificial intelligence system; system security, data security, and information confidentiality; and the ability to inspect and monitor the development and operation of the artificial intelligence system.

3. Ensuring fairness, transparency, impartiality, non-discrimination, and no harm to individuals or society; adhering to Vietnamese ethical standards and cultural values; and being accountable for the decisions and consequences of artificial intelligence systems.

4. Promote the development of green, inclusive, and sustainable artificial intelligence; encourage the development and application of artificial intelligence technologies that are energy-efficient, resource-saving, and reduce negative impacts on the environment.

Article 5. State policy on artificial intelligence activities

1. There is a policy to develop artificial intelligence to become a key driver for national growth, innovation, and sustainable development.
2. Encourage controlled technology testing; apply management measures commensurate with the level of risk and encourage voluntary compliance mechanisms.
3. Implement policies to ensure the rights and facilitate access to, learning from, and benefiting from artificial intelligence for organizations and individuals; encourage the development and application of artificial intelligence to serve social welfare, support people with disabilities, the poor, and ethnic minorities to narrow the digital divide; and preserve, promote, and maintain national cultural identity.
4. Prioritize investment and mobilization of social resources to develop secure data infrastructure, computing infrastructure, artificial intelligence, high-quality human resources, and nationally strategic shared artificial intelligence platforms.
5. Prioritize the application of artificial intelligence in management, administration, public service delivery, and decision-making support by state agencies to improve efficiency, transparency, and quality of service to citizens and businesses; encourage widespread application in socio-economic sectors and fields to enhance productivity, service quality, and management efficiency.
6. Encourage organizations, networks, and social initiatives to promote safety, ethics, trust, and build social confidence in the development of artificial intelligence.
7. Promote the application of artificial intelligence in business operations and economic sectors.
Key social issues; developing a startup and innovation ecosystem; encouraging public-private partnerships.
8. Actively integrate and cooperate internationally; participate in building and shaping global standards and governance frameworks; ensure national interests and sovereignty in the field of artificial intelligence.

Article 6. Application of artificial intelligence in industries and fields

1. The application of artificial intelligence in various industries and fields must comply with the risk management principles stipulated in this Law and be consistent with relevant laws.
2. For essential sectors that directly impact human life, health, rights and legitimate interests, or social order and safety, the application of artificial intelligence must be subject to stricter risk management, tailored to the specific characteristics of each sector, including the following areas:
 - a) Healthcare sector: ensuring patient safety; reliability under real-world usage conditions; protecting health data in accordance with legal regulations;
 - b) Education sector: ensuring suitability to the age characteristics and developmental stage of learners; preventing risks in assessment, classification, and impact on learners; ensuring data security and privacy.

3. The application of artificial intelligence in scientific research must ensure compliance with research ethics, scientific integrity, and the prevention of fraud and plagiarism during the research process and the publication of results.

4. The Government, Ministries, and ministerial-level agencies, within their respective functions, duties, and powers, shall specify in detail the requirements for safety, risk management, and deployment conditions for the application of artificial intelligence in their respective sectors and fields of management, ensuring compliance with the provisions of this Law.

Article 7. Prohibited acts

1. Exploiting or hijacking artificial intelligence systems to commit illegal acts or infringe upon the legitimate rights and interests of organizations and individuals.

2. Developing, providing, deploying, or using artificial intelligence systems for the following purposes:

a) Committing acts that are strictly prohibited by law;

b) Using fabricated or simulated real people or events to deceive or manipulate people's perceptions and behavior in a deliberate and systematic manner, causing serious harm to people's legitimate rights and interests;

c) Exploiting the weaknesses of vulnerable groups, including children, the elderly, people with disabilities, ethnic minorities, or people with diminished or limited legal capacity, or those with cognitive or behavioral difficulties, to cause harm to themselves or others;

d) Creating or disseminating false content that has the potential to seriously endanger national security, public order, and social safety.

3. Collecting, processing, or using data to develop, train, test, or operate artificial intelligence systems in violation of laws on data, personal data protection, intellectual property, and cybersecurity.

4. Obstructing, disabling, or distorting the mechanisms of human oversight, intervention, and control over artificial intelligence systems as stipulated in this Law.

5. Concealing information that must be publicly disclosed, transparent, or explained; erasing, altering, or falsifying mandatory information, labels, or warnings in artificial intelligence operations.

6. Exploiting research, testing, evaluation, or verification activities of artificial intelligence systems to commit acts contrary to the law.

Article 8. One-stop electronic portal on artificial intelligence and the National database on artificial intelligence systems.

1. The one-stop electronic portal on artificial intelligence is a digital platform established to support the reception and registration for participation in controlled trials; receiving notifications of AI system classification results, reports of serious incidents and periodic reports; publicly disclosing information on AI systems, conformity assessment results, results of handling violations according to the law and connecting support programs, funds, infrastructure, and shared data.

2. A national database on artificial intelligence systems will be built and managed uniformly to serve the management, monitoring, and public disclosure of information on artificial intelligence systems in accordance with the law.

3. The public disclosure, connection, and sharing of data on the one-stop electronic portal for artificial intelligence and the National Database on Artificial Intelligence Systems must ensure information security and safety; protect state secrets, business secrets, and personal data.

4. The Government shall specify in detail the operating, management, and exploitation mechanisms of the one-stop electronic portal on artificial intelligence and the National Database on Artificial Intelligence Systems.

Chapter II

CLASSIFICATION AND MANAGEMENT OF ARTIFICIAL INTELLIGENCE SYSTEMS BASED ON RISK

Article 9. Classification of Risk Levels of Artificial Intelligence Systems

1. Artificial intelligence systems are classified according to the following risk levels:

a) High-risk artificial intelligence systems are those that can cause significant harm to the lives, health, legitimate rights and interests of organizations and individuals, national interests, public interests, and national security;

b) Medium-risk artificial intelligence systems are those that have the potential to confuse, influence, or manipulate users due to their inability to recognize that the interacting entity is an artificial intelligence system or the content generated by the system;

c) Low-risk artificial intelligence systems are those that do not fall under the cases specified in points a and b of this clause.

2. The risk classification of artificial intelligence systems is determined based on criteria such as the level of impact on human rights, safety, and security; the system's area of use, especially essential areas or those directly related to the public interest; the scope of users; and the scale of the system's impact.

3. The Government shall provide detailed regulations for this Article.

Article 10. Classification and notification of artificial intelligence systems

1. The vendor shall classify the artificial intelligence system before deployment. Systems classified as medium risk or high risk must have a classification record attached.
2. The implementing party inherits the classification results from the supplier and is responsible for ensuring the safety and integrity of the system during use; in case modifications, integrations, or functional changes give rise to new or higher risks, they must coordinate with the supplier to perform a reclassification.
3. For systems classified as medium or high risk, the supplier must notify the Ministry of Science and Technology of the classification results through the one-stop portal on artificial intelligence before putting them into use. Organizations and individuals developing low-risk artificial intelligence systems are encouraged to publicly disclose basic information about the system to increase transparency.
4. In cases where the level of risk has not been determined, the supplier may request guidance from the Ministry of Science and Technology on classification based on the technical documentation.
5. Inspection and monitoring are carried out according to the risk level of the system:
 - a) High-risk artificial intelligence systems are subject to periodic inspections or when signs of violations are detected;
 - b) Medium-risk artificial intelligence systems are monitored through reports, sample testing, or independent organizational evaluations;
 - c) Low-risk artificial intelligence systems are monitored and inspected in case of incidents, reports, or when security needs to be ensured, without creating unnecessary obligations for organizations or individuals.
6. Based on the results of the inspection and monitoring stipulated in Clause 5 of this Article, if discrepancies or untruthful declarations are detected, the competent authority shall request reclassification, supplementary documentation, or temporary suspension of use, and shall handle the matter in accordance with the law.
7. The Government shall specify in detail the content to be notified, the notification procedures, and technical guidance on risk classification.

Article 11. Responsibility for Transparency

1. The provider warrants that the artificial intelligence system interacting directly with humans is designed and operated in a way that allows the user to be aware of their interaction with the system, unless otherwise provided by law.
2. The provider guarantees that audio, visual, and video content generated by the artificial intelligence system is tagged in a machine-readable format as prescribed by the Government.
3. The implementing party is responsible for clearly notifying the public when providing text, audio, images, or videos created or edited using artificial intelligence systems if such content is likely to cause confusion regarding the authenticity of events or individuals, unless otherwise provided by law.

4. The implementing party is responsible for ensuring that audio, images, and videos created or edited using artificial intelligence systems to simulate or mimic the appearance and voice of real people or to recreate real events are clearly labeled to distinguish them from real content.

For products that are cinematographic, artistic, or creative works, the labeling prescribed in this section shall be done in a manner appropriate to ensure that it does not hinder the display, performance, or enjoyment of the work.

5. The supplier and implementer are responsible for maintaining transparent information as required by this Article throughout the process of providing the system, product, or content to users.

6. The government shall specify the details of the notification and labeling procedures.

Article 12. Responsibilities for managing and handling artificial intelligence incidents

1. Developers, vendors, implementers, and users of artificial intelligence systems are responsible for ensuring the safety, security, reliability, and timely detection and remediation of incidents that could cause harm to people, property, data, or social order.

2. When a serious malfunction occurs in an artificial intelligence system, the developer, vendor, implementer, and user of the artificial intelligence system have the following responsibilities:

a) Developers and suppliers must promptly implement technical measures to rectify, suspend, or recall the system, and simultaneously notify the competent authority;

b) The implementing party and the user are obligated to promptly record and report incidents and cooperate in the resolution process.

3. The competent state management agency shall receive, verify, and guide the handling of incidents; when necessary, it has the right to request the temporary suspension, withdrawal, or reassessment of the artificial intelligence system.

4. Incident reporting and resolution are carried out through a one-stop electronic portal for artificial intelligence.

5. The government shall regulate the reporting and responsibilities of relevant agencies, organizations, and individuals in accordance with the severity of the incident and the scope of impact of the artificial intelligence system.

Article 13. Conformity assessment for high-risk artificial intelligence systems

1. High-risk artificial intelligence systems must undergo conformity assessment in accordance with the provisions of this Law before being put into use or when significant changes occur during use. If there are existing standards or technical regulations for artificial intelligence systems, a conformity assessment must also be carried out in accordance with the law on standards and technical regulations.

2. Conformity assessment is the process of confirming that an artificial intelligence system meets the requirements of Article 14 of this Law and is carried out as follows:

a) For high-risk artificial intelligence systems that fall under the category of artificial intelligence systems requiring conformity certification before deployment: the assessment shall be carried out by a conformity assessment body that is registered or accredited in accordance with the law;

b) For other high-risk artificial intelligence systems: the supplier shall conduct its own conformity assessment or hire a conformity assessment organization that is registered or accredited in accordance with the law.

3. The results of the conformity assessment are a condition for allowing high-risk artificial intelligence systems to be put into use; organizations and individuals with systems that have undergone conformity assessment are responsible for maintaining conformity and disclosing information as prescribed by the Government, which serves as the basis for conducting inspections and monitoring compliance with the provisions of Article 10 of this Law.

4. The Prime Minister shall prescribe the List of High-Risk Artificial Intelligence Systems, including the list of AI systems that must be certified for conformity before being put into use.

5. Organizations assessing conformity and testing artificial intelligence systems must ensure independence, possess sufficient technical capacity as prescribed, and be subject to periodic supervision by competent state agencies.

6. The Government shall provide detailed regulations for this Article.

Article 14. Management of high-risk artificial intelligence systems

1. Providers of high-risk artificial intelligence systems have the following responsibilities:

a) Establish and maintain risk management measures and regularly review them when the system undergoes significant changes or new risks arise;

b) Managing training, testing, and operational data to ensure quality within the scope of technical capabilities and in accordance with the system's intended use;

c) Establish, update, and maintain technical records and operational logs as necessary for conformity assessment and post-commissioning inspection; provide this information to competent state agencies only as necessary and proportionate to the inspection purpose, without disclosing trade secrets;

d) Design the system to ensure the ability of humans to monitor and intervene in the system;

d) Fulfill the obligations of transparency and incident handling as prescribed in Articles 11 and 12 of this Law;

e) To be accountable to competent state agencies regarding the purpose of use, operating principles at the functional description level, main types of input data, risk management and control measures, and other necessary information for inspection and auditing; to provide users and affected parties with publicly available information at the functional description level and methods.

Operation and risk warnings are provided to ensure safe use. Explanations and information provision should not require disclosure of source code, detailed algorithms, parameter sets, or information classified as trade secrets or technological secrets;

g) Coordinate with competent state agencies and the implementing party in inspecting, evaluating, post-auditing, and troubleshooting system-related issues.

2. The party deploying a high-risk artificial intelligence system has the following responsibilities:

a) Operate and monitor the system for its intended purpose, within the scope and risk level as classified, without creating new or higher risks;

b) Ensuring data security and confidentiality, and preventing human interference during use;

c) Maintain compliance with technical standards and regulations on artificial intelligence during system operation;

d) Fulfill the obligations of transparency and incident handling as stipulated in Articles 11 and 12 of this Law;

d) To fulfill accountability responsibilities to competent state agencies regarding system operation, risk control measures, incident handling, and necessary information for inspection and auditing; to provide users and affected parties with publicly available information at the level of describing functions, operating methods, and risk warnings to ensure safety in use;

e) Coordinate with suppliers and competent government agencies in inspection, evaluation, post-inspection, and troubleshooting.

3. Users of high-risk artificial intelligence systems are responsible for complying with operating procedures, technical guidelines, and safety measures; not interfering with or altering the system's functionality without authorization; and promptly reporting any incidents to the implementation party.

4. The explanation must be consistent with the technical capabilities of the system and must not disclose trade secrets as required by law.

5. Encourage suppliers and implementers to participate in civil liability insurance or apply other appropriate measures to secure the fulfillment of obligations in order to promptly resolve incidents and compensate for damages.

6. Foreign suppliers of high-risk artificial intelligence systems in Vietnam must have a legal point of contact in Vietnam; in cases where the system is subject to mandatory conformity certification before use, they must have a commercial presence or authorized representative in Vietnam.

7. The Government shall provide detailed regulations for this Article.

Article 15. Management of medium- and low-risk artificial intelligence systems

1. Artificial intelligence systems with medium risk are managed as follows:

- a) The supplier and the implementing party must ensure transparency as stipulated in Article 11 of this Law;
- b) The supplier is responsible for providing explanations regarding the intended use, operating principles at the functional description level, key input data, and risk management and security measures of the system when requested by state agencies during inspections or audits, or when there are signs of risk or incidents; such explanations do not require disclosure of source code, detailed algorithms, parameter sets, or trade secrets or technological secrets;
- c) The implementing party is responsible for accountability regarding operation, risk control, incident handling, and protection of the legitimate rights and interests of organizations and individuals when requested by competent state agencies during inspections, audits, or incident handling;
- d) Users are responsible for complying with regulations regarding notification and labeling of artificial intelligence systems.
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2. Low-risk artificial intelligence systems are managed as follows:

- a) The supplier is responsible for providing explanations when requested by competent state authorities in cases where there are signs of violations of the law or effects on the legitimate rights and interests of organizations or individuals;
- b) The implementing party is responsible for providing explanations when requested by competent state agencies in case of signs of violations of the law or impact on the legitimate rights and interests of organizations or individuals;
- c) Users have the right to exploit and use the system for legitimate purposes and are solely responsible before the law for their usage.

3. The State encourages organizations and individuals to deploy artificial intelligence systems with medium and low risks, applying technical standards for artificial intelligence.

Chapter III

DEVELOPING INFRASTRUCTURE AND ENSURING NATIONAL ARTIFICIAL INTELLIGENCE SOVEREIGNTY FAMILY

Article 16. National Artificial Intelligence Infrastructure

1. The national artificial intelligence infrastructure is a strategic infrastructure, encompassing infrastructure invested in by the State, businesses, and social organizations; it is developed as a unified, open, secure ecosystem.

The ability to connect, share, and expand ensures that the requirements for the development and application of artificial intelligence are met.

2. The State plays a guiding, coordinating, and ensuring role in ensuring the infrastructure capacity for the development of national artificial intelligence; encourages businesses, research institutes, universities, and social organizations to invest in, build, and share infrastructure; and strengthens public-private cooperation in the development of artificial intelligence infrastructure.

3. The State shall invest in, build, and operate artificial intelligence infrastructure to provide services as public services, serving research, development, state management, and supporting innovative startups, including: computing capacity and shared data; training, testing, and experimental environment platforms; platform models, multi-purpose artificial intelligence models, large-scale language models in Vietnamese and ethnic minority languages; and other infrastructure components.

4. The national artificial intelligence infrastructure, invested in by the State, enterprises, and social organizations, is connected, shared, and exploited according to technical standards, regulations, and requirements for safety, security, and data protection.

5. Important artificial intelligence applications in essential sectors, as listed in the Prime Minister's decree, must be deployed on the national artificial intelligence infrastructure to ensure safety, security, and controllability.

6. The Government shall specify in detail the mechanisms for coordination, sharing, incentives, and measures to promote the development of the national artificial intelligence infrastructure, in accordance with each stage and the requirements for ensuring national safety and security.

Article 17. Databases for Artificial Intelligence

1. Databases serving artificial intelligence are a crucial component of the national artificial intelligence infrastructure, including the national database, databases of ministries, ministerial-level agencies, government agencies, People's Committees at all levels, and databases of organizations and individuals. These databases are created, managed, and exploited to serve training, testing, evaluation, and development of artificial intelligence applications in accordance with the laws on data, personal data protection, and intellectual property.

2. The national artificial intelligence database is invested in, built, and operated by the State at the National Data Center; it is organized according to the principles of openness, security, control, and meets requirements for quality, connectivity, and exploitation; it includes open data, conditionally open data, and commercial data as prescribed by law.

3. Databases serving artificial intelligence of Ministries, ministerial-level agencies, government agencies, and People's Committees at all levels shall be built, updated, and uniformly connected with the National Artificial Intelligence Database; ensuring technical standards and regulations, data quality, and information security.

4. Databases of organizations and individuals serving artificial intelligence are encouraged to be shared with state agencies and other organizations and individuals through an agreement mechanism; such sharing must comply with the law.

Data law, personal data protection, and intellectual property rights ensure the legitimate rights and interests of all stakeholders.

5. The Prime Minister shall issue a list of datasets serving the development of artificial intelligence in essential fields, prioritizing data on culture, Vietnamese language and ethnic minority languages, administrative procedures, health, education, agriculture, environment, transportation, socio-economics, and other important fields.

6. The government shall specify in detail the principles of connectivity, mechanisms for sharing, exploitation, and data security in databases serving artificial intelligence.

Article 18. Mastering Artificial Intelligence Technology

1. The State prioritizes the development and mastery of core artificial intelligence technologies; prioritizes resources for research and development of multi-purpose AI models, large-scale language models for Vietnamese and ethnic minority languages, Vietnamese knowledge processing technology, high-performance computing and training technology, hardware and semiconductors serving artificial intelligence; promotes the development and application of open source to enhance technological autonomy, security, and national sovereignty in the digital environment.

2. The State promotes research, development, improvement, and application of artificial intelligence technology domestically; supports organizations and individuals in developing models, algorithms, software, hardware, and foundational technologies; encourages resource-efficient solutions that are easy to implement and suitable for Vietnam's conditions; develops national endogenous capacity and an innovation ecosystem in artificial intelligence; and strengthens public-private cooperation to master the technology.

3. Organizations and individuals researching, developing, and mastering core artificial intelligence technologies are entitled to special incentives and support policies as prescribed by law.

4. The State promotes the application of artificial intelligence to serve scientific research, analysis and simulation, technology design and testing, and the automation of research, development, and innovation processes in order to enhance national scientific and technological capacity; creating conditions for the development of creative capacity and mastery of the entire lifecycle of artificial intelligence technology.

5. The Government shall specify in detail the mechanisms, criteria, and measures to promote the mastery of artificial intelligence technology, in accordance with each stage of development and the requirements for ensuring national safety and security.

Chapter IV

APPLYING ARTIFICIAL INTELLIGENCE TO DEVELOP INNOVATIVE ECOSYSTEMS HUMAN RESOURCES AND DEVELOPMENT

Article 19. National Strategy on Artificial Intelligence

1. The Prime Minister shall issue the National Strategy on Artificial Intelligence, and review, evaluate, and update it periodically, at least every three years, or whenever there are significant changes in technology or the market.

Ministries, ministerial-level agencies, government agencies, and People's Committees at all levels are responsible for integrating the objectives and tasks of the Strategy into their respective sectoral, field, and local development strategies and plans, and ensuring the necessary resources for implementation.

2. The national strategy on artificial intelligence is built on the basis of development orientations for technology, infrastructure, data, and human resources; promoting research, mastery, and application of artificial intelligence in priority areas; ensuring safety, innovation, and national sovereignty in the digital environment. The strategy must stipulate a system of indicators, methods, and measurement mechanisms to assess the level of national artificial intelligence development.

3. The State encourages the development of artificial intelligence technology groups that are suitable for Vietnam's conditions, have the potential to create added value, are environmentally friendly, easily applicable, and contribute to ensuring national sovereignty in the digital environment.

Article 20. Development of the Artificial Intelligence Ecosystem and Market

1. Organizations and individuals operating in the field of artificial intelligence are entitled to the highest incentives and support as prescribed by the law on science and technology, investment, and digital technology industry. High technology, digital transformation, and relevant laws; facilitated access to infrastructure, data, and testing environments to support research, production, and commercialization of artificial intelligence products and services.

2. The State supports the development of the artificial intelligence ecosystem and market, including:

- a) Prioritize the use of artificial intelligence products and services in accordance with the law on bidding;
- b) Develop the market for artificial intelligence products and services, including technology exchanges and platforms connecting supply and demand;
- c) Ensuring fair and transparent access to computing infrastructure, data, and controlled testing environments;
- d) Applying preferential tax, investment, and financial policies based on the principle of encouraging research, production, and commercialization of artificial intelligence products and services.

3. The State encourages the development and application of next-generation artificial intelligence, promotes innovation, and enhances the capacity for governance, production, business, and public service delivery.

4. Organizations, individuals, businesses, research institutions, and state agencies are encouraged to exploit, share, and reuse data in the National Artificial Intelligence Database for research, training, testing, and innovation, ensuring compliance with data laws, personal data protection, cybersecurity, and intellectual property rights.

5. Small and medium-sized enterprises (SMEs) and innovative startups in artificial intelligence will be given priority access to technical infrastructure, data, and testing environments, and will receive support in terms of costs, training, and market connections to facilitate the development of AI products and services.

6. The Government shall specify in detail the mechanisms, conditions, and procedures for implementing measures to support the development of the artificial intelligence ecosystem and market.

Article 21. Controlled testing mechanism for artificial intelligence

1. The controlled testing mechanism for artificial intelligence shall be implemented in accordance with the law on science, technology and innovation and the provisions of Clauses 2, 3 and 4 of this Article.

2. The results of controlled testing serve as the basis for consideration by competent state authorities:

a) Recognize the results of conformity assessment as prescribed by this Law;

b) Exemption, reduction, or adjustment of the corresponding compliance obligations under this Law.

3. The competent state agency shall preside over and coordinate with relevant agencies to receive, evaluate, and process dossiers according to the evaluation and rapid response procedures; supervise the testing process and decide to temporarily suspend or terminate testing when there are risks affecting the safety, security, or legitimate rights and interests of organizations and individuals.

4. The Government shall provide detailed regulations for this Article.

Article 22. National Artificial Intelligence Development Fund

1. The National Artificial Intelligence Development Fund is a non-profit, off-budget state financial fund established by the Government to mobilize, coordinate, and allocate resources to promote research, development, application, and management of artificial intelligence for socio-economic development, national defense, security, and enhancing national competitiveness.

2. The Fund's financial resources include funds allocated from the state budget; contributions, aid, and sponsorships from domestic and foreign organizations and individuals; and other legitimate sources as prescribed by law.

3. The Fund applies a specific financial mechanism, accepting risks in science, technology, and innovation; allocates capital flexibly according to progress and implementation requirements, independent of the budget year; and applies simplified procedures for strategic tasks or those requiring rapid implementation. The Fund is prioritized for investment, financing, and support:

a) Developing artificial intelligence infrastructure;

b) Research, develop, and master core artificial intelligence technologies;

c) Developing artificial intelligence businesses;

d) Training, developing, and attracting human resources in artificial intelligence;

d) Other investment and support tasks serving the goal of artificial intelligence development as prescribed by the Government.

4. The fund operates on the principles of openness, transparency, efficiency, and proper purpose; ensuring coordination and avoiding duplication with other state financial funds.

5. The Government shall prescribe in detail the specific financial mechanisms, organization, management, use, and supervision of the Fund.

Article 23. Development of artificial intelligence human resources

1. The State shall develop artificial intelligence human resources in a comprehensive manner, ensuring interconnectedness across different educational levels and training programs, and guaranteeing the formation of a high-quality workforce to serve the research, development, application, and management of artificial intelligence.

2. General education should integrate basic content on artificial intelligence, computational thinking, digital skills, and technological ethics into the compulsory curriculum; and encourage experiential learning and research.

Rescue and innovation in the field of artificial intelligence.

3. Vocational and higher education institutions are encouraged to develop training programs in artificial intelligence, data science, and related fields; and to cooperate with businesses, research institutes, and international organizations in training, internships, research, and technology transfer.

4. The State implements the National Program for the Development of Artificial Intelligence Human Resources, including policies on training, scholarships, attracting and utilizing experts, and developing a team of lecturers, scientists, and management personnel in the field of artificial intelligence.

5. Organizations, training institutions, research institutes, and businesses participating in the development of artificial intelligence human resources are entitled to incentives and preferential treatment as prescribed by law, and are responsible for coordinating in training, applied research, and professional practice, linking training with practical needs.

6. Higher education institutions, research institutes, and innovation centers are responsible for cooperating, sharing knowledge, and participating in national and international networks for training, research, and development of artificial intelligence human resources.

7. The Ministry of Education and Training shall take the lead in developing and submitting to the Prime Minister for promulgation the National Program on the Development of Artificial Intelligence Human Resources, which shall stipulate standards, recognition of training programs, mechanisms for mobilizing resources, and preferential policies for participating organizations and individuals.

Article 24. Development of Artificial Intelligence Clusters

1. An artificial intelligence cluster is a collaborative network between businesses, research institutes, universities, and related organizations, organized to enhance functional and infrastructure linkages.

The artificial intelligence layer and physical space aim to promote innovation, develop artificial intelligence, and enhance competitiveness.

2. The State encourages the development of artificial intelligence clusters based on a model combining centralized physical spaces and digital networks; forming cluster centers in high-tech zones, concentrated digital technology zones, and innovation centers; attracting organizations and individuals to invest in building technical infrastructure to support the operation of the clusters, including laboratories, testing and inspection centers, and other supporting facilities that meet national and international standards.

3. Organizations and individuals that are members of recognized artificial intelligence clusters are entitled to the following preferential policies:

a) Priority access to and use of national artificial intelligence infrastructure, shared data, and testing platforms at preferential costs;

b) To receive support in participating in human resource training programs, trade promotion, scientific and technological tasks, and innovation in key sectors.

4. The Government shall specify in detail the criteria, procedures for recognition, operating mechanisms of artificial intelligence clusters, and preferential policies as stipulated in Clause 3 of this Article.

Article 25. Support for businesses in the field of artificial intelligence

1. Innovative startups and small and medium-sized enterprises will receive support for the costs of conformity assessment as stipulated in this Law; will be provided with free sample dossiers, self-assessment tools, training, and consulting; and will be given priority for support from the National Artificial Intelligence Development Fund.

2. Innovative startups, small and medium-sized enterprises, science and technology organizations, and research groups with feasible innovative projects will be supported through support vouchers to utilize computing infrastructure, shared data, large-scale Vietnamese and ethnic minority language models, training platforms, testing, and technical consulting services for research, development, and deployment of artificial intelligence applications.

3. Enterprises with research, development, and innovation capabilities in the field of artificial intelligence are given priority in participating in tasks within the national science, technology, and innovation program; high-tech development tasks are prioritized for investment and development; strategic technologies and key digital technology products and services are prioritized; and they receive support for developing core technologies, platform models, hardware, and high-performance training technologies in line with the national artificial intelligence capacity development orientation.

4. Businesses participating in artificial intelligence testing under a controlled testing mechanism will receive support in technical consulting, risk assessment, safety testing, and connection to testing and certification facilities as prescribed by law.

5. Businesses that share data, models, tools, or research results for the development of artificial intelligence are entitled to incentives or support as prescribed by law, ensuring compliance with laws on data, personal data protection, and intellectual property.

6. The State encourages cooperation between enterprises, research institutes, universities, and innovation centers to develop artificial intelligence technology, commercialize research results, and expand innovation capacity; and encourages enterprises to make long-term investments in artificial intelligence research and development.

7. The government shall specify in detail the mechanisms, policies, conditions, and procedures for providing support to businesses in the field of artificial intelligence.

Chapter V

ETHICS AND RESPONSIBILITY IN ARTIFICIAL INTELLIGENCE ACTIVITIES

Article 26. National Artificial Intelligence Ethics Framework

1. The national ethical framework for artificial intelligence is issued on the basis of the following principles:

- a) To ensure safety, reliability, and to avoid harming the life, health, honor, dignity, and spiritual well-being of human beings;
- b) Respect human rights and civil rights, and ensure fairness, transparency, and non-discrimination in the development and use of artificial intelligence;
- c) To promote the happiness, prosperity, and sustainable development of individuals, communities, and society;
- d) Encourage innovation and social responsibility in the research, development, and application of artificial intelligence.

2. The national AI ethics framework is reviewed and updated periodically or whenever there are major changes in technology, law, and management practices.

3. The national AI ethics framework serves as a basis for guiding the development of technical standards and regulations, specialized guidelines, and policies to encourage the safe, reliable, and responsible development of artificial intelligence.

4. The State encourages organizations and individuals to apply the National Artificial Intelligence Ethics Framework in the research, development, provision, deployment, and use of artificial intelligence systems to ensure transparency, fairness, safety, and respect for human rights.

5. The Minister of Science and Technology shall issue the National Artificial Intelligence Ethics Framework based on the provisions of Clause 1 of this Article.

Article 27. Ethical responsibilities and impact assessment when applying artificial intelligence in state management and public service provision.

1. The use of artificial intelligence systems in state management and public service delivery must ensure transparency, accountability, and compliance with the National Artificial Intelligence Ethics Framework.
2. Artificial intelligence systems do not replace the authority and responsibility of decision-makers as stipulated by law. Decision-makers are responsible for considering and utilizing the results provided by the artificial intelligence system.
3. Organizations operating artificial intelligence systems that pose high risks or have a significant impact on human rights, social justice, or the public interest must prepare an impact assessment report on the system's use; the report must include risk identification, control measures, and assurances for human monitoring and intervention.
4. The agency preparing the impact assessment report is responsible for the content, accuracy, and completeness of the report; the report shall be made public in accordance with the law, except for content classified as state secrets, trade secrets, or personal data.
5. The Government shall specify in detail the content, procedures, and responsibilities for impact assessment, risk management, and monitoring of the use of artificial intelligence systems in state administration and public service provision.

Chapter VI

INSPECTION, EXAMINATION AND HANDLING OF VIOLATIONS

Article 28. Inspection and Examination

1. Inspection activities in the field of artificial intelligence are carried out in accordance with the law on inspection.
2. Agencies and organizations assigned to perform state management functions regarding artificial intelligence are responsible for inspecting the compliance with the law by organizations and individuals in artificial intelligence activities.
3. During inspections and audits, relevant organizations and individuals are obligated to provide technical records, logbooks, training data, and other necessary information to determine the cause of violations or incidents, or to assign responsibility; the provision of information must comply with the law on the protection of state secrets, data, personal data, and intellectual property.
4. Conclusions of inspections and audits, and decisions on administrative penalties for violations, must be made public in accordance with the law.

Article 29. Handling of violations and liability for compensation for damages

1. Organizations and individuals who violate the provisions of this Law and other relevant laws concerning artificial intelligence shall, depending on the nature, extent, and consequences of the violation, be subject to administrative penalties or criminal prosecution; if damage is caused, they shall be liable for compensation in accordance with civil law.

2. In cases where a high-risk artificial intelligence system is managed, operated, and used in accordance with regulations but still results in damage, the implementing party shall be responsible for compensating the affected party. After compensation, the implementing party may request the supplier, developer, or related parties to reimburse the compensation amount if agreed upon by all parties.

3. The liability for compensation for damages stipulated in Clause 2 of this Article shall be exempted in the following cases:

a) The damage occurred entirely due to the intentional fault of the injured party;

b) Damage occurring in circumstances of force majeure or emergency, unless otherwise provided by law.

4. In the event that an artificial intelligence system is illegally accessed, controlled, or interfered with by a third party, that third party shall be liable for compensation for damages. If the implementing party or supplier is at fault for allowing the system to be accessed, controlled, or interfered with illegally, they shall be jointly liable for compensation for damages in accordance with the provisions of civil law.

event.

5. The government shall specify in detail the penalties for administrative violations caused by artificial intelligence systems.

Chapter VII

STATE MANAGEMENT OF ARTIFICIAL INTELLIGENCE

Article 30. Content and responsibilities of state management of artificial intelligence

1. The content of state management regarding artificial intelligence includes:

a) Develop, promulgate, and organize the implementation of strategies, policies, programs, and legal documents on artificial intelligence;

b) Promulgating and implementing technical standards and regulations on artificial intelligence;

c) Managing, coordinating, and developing the national artificial intelligence infrastructure;

d) Managing and monitoring artificial intelligence operations;

d) Disseminating policies and laws; compiling statistics, reports, conducting scientific research, and engaging in international cooperation on artificial intelligence;

e) Inspecting, examining, handling violations, resolving disputes, complaints, and denunciations related to artificial intelligence.

2. State management responsibilities regarding artificial intelligence:

a) The government shall have unified state management over artificial intelligence;

b) The Ministry of Science and Technology is the focal agency, responsible to the Government for the state management of artificial intelligence nationwide;

c) Ministries and ministerial-level agencies, within the scope of their functions, duties, and powers, shall coordinate with The Ministry of Science and Technology is responsible for the state management of artificial intelligence.

d) Provincial People's Committees shall exercise state management over artificial intelligence at the local level.

Article 31. Principles for providing information and data for state management purposes.

1. Competent state agencies, organizations, and individuals assigned to carry out state management activities as prescribed by this Law are responsible for ensuring the confidentiality of information and data, and business secrets provided during the performance of their duties, including technical documents, training data, source code, and algorithms as prescribed by law.

2. Requests for information and data from organizations and individuals must ensure that they are necessary, proportionate, and appropriate to the scope, purpose, and content of state management activities.

3. The information and data provided must be kept safe and secure in accordance with the law.

Article 32. International Cooperation

1. International cooperation in the field of artificial intelligence shall be carried out in accordance with the provisions of the law on science and technology, the law on technology transfer, other relevant legal provisions, and international treaties to which the Socialist Republic of Vietnam is a party.

2. The State encourages international cooperation on sharing high-performance computing infrastructure, data, human resources, scientific research, and recognition of conformity assessment results as prescribed by this Law.

Chapter VIII

ENFORCEMENT CLAUSES

Article 33. Repeal of certain chapters, articles, clauses, and points of the Law on Industry and Technology No. 71/2025/QH15

Article 3, Clause 9; Article 4, Clause 7; Article 12, Clause 6; Article 34, Clause 2, Point d; and Chapter IV of the Law on Digital Technology Industry are hereby repealed.

Article 34. Effective Date

This Law shall come into effect on March 1, 2026, except for the provisions stipulated in Article 35 of this Law.

Article 35. Transitional provisions

1. For artificial intelligence systems that were put into operation before the effective date of this Law, the supplier and implementer are responsible for fulfilling their compliance obligations under this Law within the following timeframe:

a) Eighteen months from the effective date of this Law for artificial intelligence systems in the fields of healthcare, education, and finance;

b) Twelve months from the effective date of this Law for artificial intelligence systems not falling under the provisions of point a) of this clause.

2. Within the period stipulated in Clause 1 of this Article, the artificial intelligence system may continue to operate, except in cases where the state management agency for artificial intelligence determines that the system poses a serious risk of causing damage, in which case it has the right to request a temporary suspension or termination of operation.

This law was passed by the 15th National Assembly of the Socialist Republic of Vietnam at its 10th session on December 10, 2025.

CHAIRMAN OF THE NATIONAL ASSEMBLY

Tran Thanh Man